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LIBERIA

Human Rights Developments

Liberians were subjected to human rights abuses by government police and security forces as well as violence at the hands of Liberian rebels in an incursion from Guinea and armed groups in a spill-over from the Sierra Leonean conflict. Growing violence and insecurity threatened to reverse the tenuous peace established since 1997 after the end of the brutal seven-year civil war. Two years after the United Nations-sanctioned election that brought former warring faction leader Charles Taylor to power, the peace situation in Liberia remained fragile. The incomplete implementation of the peace accords, particularly with regard to demobilization; a general amnesty to faction fighters for egregious abuses committed "in the course of actual military engagements"; and the wholesale enrollment of fighters from Taylor's former faction into the country's restructured police and security forces contributed to make this situation increasingly more volatile.

Liberians continued to report regular harassment, extortion, mistreatment, and torture by the police and armed forces. Following his inauguration, President Taylor rejected the peace accord provision that provided for an open and transparent restructuring of the security forces by the West African peacekeeping force. Instead, former Taylor faction fighters were placed in the security and police forces without serious efforts to provide training or to meet pledges to incorporate members from the other factions. Former Taylor fighters were also permitted by the government to create security firms for hire by private sector companies. There were complaints of general lawlessness by both government forces and the private security companies. In one of the more egregious incidents, a group of armed soldiers in search of a missing man stormed Dambala village in the western part of the country in March, and beat and detained men, raped women and looted homes. The military acknowledged that looting had occurred, but denied the allegations of violence. An investigation was set up, however, no security officer had been held responsible by October. In August, a new police chief, Paul Mulbah, was appointed following the death of Joe Tate, who was notorious for his disregard of human rights. Human rights groups in the capital, Monrovia cautiously welcomed the new appointment.

Although an independent press functioned in Liberia, it came under attack. In February, a Liberian newspaper editor and his business manager were badly beaten by members of the Special Security Service. In March, the police attempted to coerce journalist Isaac Manyongai of the Heritage to disclose his source for a story about a South African businessman who was alleged to have strong ties with Liberian officials. In April, Criminal Court A ordered criminal contempt charges and the arrest of the staff of the Independent Eye on the grounds that the newspaper had published a derogatory statement about the court. Star Radio, an independent station managed by the Swiss nongovernmental organization Fondation Hirondelle had its shortwave license withdrawn in October 1998 and since then has no longer been able to broadcast outside Monrovia.

Armed opposition to the government remained a serious threat to sustained peace. Barely a year after the war had ended, there were two outbreaks of violence in Monrovia in 1998 in which state security forces battled with supporters of faction leader Roosevelt Johnson's officially disbanded United Liberation Movement for Democracy in Liberia (ULIMO-J), eventually forcing him to flee the country. The precise number of casualties was unknown, although there were reports of mass graves of

ethnic Krahn who were indiscriminately targeted as ULIMO supporters by the security forces. Following the violence, some thirty people were charged with treason. In April 1999, thirteen were convicted of treason, amid charges of irregularities in the legal process and ill-treatment in custody. Although treason carries a mandatory life sentence in Liberia, the sentence was commuted to ten years' imprisonment by the judge on the grounds that there was a "need for genuine reconciliation." A group of nine military officers, also arrested in September 1998, was brought before a court martial board on charges of sedition for allegedly supporting the former rebel faction. Defense lawyers complained of harsh treatment of the accused, who were being held in deplorable conditions in military prison without access to their relatives.

The internal conflicts within Sierra Leone, Liberia, and Guinea continued to spill over the borders, further destabilizing the region. In the early part of 1999, the Liberian government was accused of fueling the war in neighboring Sierra Leone by helping the Sierra Leonean Revolutionary United Front (RUF), a charge it strenuously denied. Former Taylor faction fighters reportedly fought alongside the RUF, thwarting the efforts of the West African regional peacekeeping force to restore peace. In December 1998, Foreign Minister Monie Caplan conceded that Liberians were involved in Sierra Leone, but stressed that it was without the backing of the government. President Taylor, in turn, accused Sierra Leone of providing a safe haven to Liberian rebels intent on destabilizing his government.

After being accused of supporting rebel activity in a neighboring country, the tables turned in April and August when Liberian rebels operating from neighboring Guinea carried out attacks in Lofa County, northern Liberia. Although not confirmed, the rebel attacks were thought to be led by former fighters from the ULIMO-K and other factions. Full-scale fighting including artillery barrages occurred during the two offensives as the Liberian army attempted to regain control, causing civilian deaths and displacement. In April, armed men from neighboring Guinea attacked a Liberian border town, looted, and held hostage for two hours foreign diplomats and aid workers, including the Dutch ambassador, the first secretary of the Norwegian Embassy, a European Union (E.U.) representative, and eleven aid workers, before releasing them to Liberian soldiers. In August, the fighting intensified when rebels seized the towns of Kolahun and Voinjama in Lofa County, killing hundreds and forcing thousands of Liberians and Sierra Leonean refugees to flee the area. By September, thousands of Sierra Leonean refugees and Liberians were trapped in cross fire, resulting in the death of some 600 and displacement of over 10,000 civilians and Sierra Leonean refugees. U.N. warehouses and vehicles were looted and aid workers were evacuated. Nine hostages, including six foreign aid workers, were kidnapped during a border attack in Kolahun, northern Liberia and held for several days before being released. The government accused the Guinean government of permitting Liberian rebel forces to operate in Guinea, while the Guinean government made counter-allegations that Liberia was harboring Guinean rebel groups that attacked its villages close to the border. Some looting was also carried out by Liberian security forces sent to the area to quell the violence.

There were some 90,000 Sierra Leonean refugees in Liberia, of which 35,000 were affected by the fighting in Lofa County. In July, Sierra Leonean refugees began leaving the camps in Liberia for Sierra Leone reportedly due to constant harassment and intimidation by Liberian police and army. Thousands of others fled the fighting and sought refuge further inside Liberia. By September, the U.N. High Commissioner for Refugees (UNHCR) had begun to relocate them to established camps elsewhere in the country.

At the end of September, the Liberian Government announced that its forces had regained complete control of Lofa County, and President Taylor and Guinean president Lansana Conte signed an agreement at an Economic Community of West African States (ECOWAS) emergency mini-summit aimed at easing the growing tension between the two countries. Guinea had threatened to retaliate after Liberian troops reportedly crossed into Mashanta, Guinea in September, killing twenty-eight civilians. Under the agreement, the two governments agreed to compile and exchange lists of government opponents and set up a joint security committee.

Voluntary repatriation of the estimated one million refugee and internally displaced Liberians continued. In September, UNHCR estimated that some thirty thousand refugees had repatriated since January 1999 bringing the total number of repatriations since May 1997 to 120,530. Although accurate

statistics on the return of internally displaced populations were difficult to obtain, the Liberian Refugee, Repatriation and Resettlement Commission estimated in September that 110,000 displaced persons living in camps had returned to their home areas and that an estimated 40,000 displaced persons remained in Monrovia. One of the major reasons cited for the slow return was the lack of funds to build housing for returnees.

Defending Human Rights

Human Rights defenders in Liberia have increasingly come under attack with threats and intimidation against human rights groups for reporting on abuses increasing in 1999. President Taylor and other high-ranking government officials attacked human rights groups for publicizing abuses and blamed the human rights community for the withholding of international aid. In February, the Catholic Justice and Peace Commission was criticized by politicians for publicizing wrong-doing by security forces, poor treatment of prisoners, and forced labor and abduction of children in southeastern Liberia. In March, legislators from four countries took two non-governmental human rights groups, the Catholic Justice and Peace Commission and the Fore-Runners of Children's Universal Development (Focus), to court on the grounds that the reports released by these groups were making it difficult for Liberia to receive international donor aid. In July, over one hundred former combatants stormed and looted the house of Commany Wesseh of the Center for Democratic Empowerment after he appeared on a radio talk show stating that the Liberian government, and not the U.N., was responsible for the reintegration of combatants. Although some were arrested by the police, they were later released without charge. In July, an army colonel cautioned human rights activists, accusing them of sending "malicious and negative signals" to the international community.

In April, unidentified men in a vehicle forced off the road the driver of a human rights activist from the National Human Rights Center of Liberia, dragged him from the car, beat him up, and then cut off one of his ears. Although the perpetrators of this incident were unknown, the Taylor faction was known during the war for cutting off one ear as punishment for infractions by its own forces. The National Human Rights Center of Liberia, an umbrella organization made up of several human rights groups, issued a statementsaying: "When the Taylor government falsely accuses human rights organizations of driving away foreign investors with their reports, it must look at its own security forces for giving it a bad name. It is not human rights organizations who go about beating people, killing them, disappearing them, terrorising ordinary folks and cutting their ears off. It is the barbaric security forces."

Despite these attacks, the emergent human rights community that had functioned only in Monrovia during the war continued to expand its activities. The organizations included the Catholic Church's Justice and Peace Commission, the Center for Law and Human Rights Education, the Liberian Human Rights Chapter, the Association of Human Rights Promoters, Liberia Watch for Human Rights, the National Human Rights Monitor, the Movement for the Defense of Human Rights, the Liberia Civil and Human Rights Association, Liberia Democracy Watch, the Civil Rights Association of Liberian Lawyers, Fore-Runners of Children's Universal Development, the Center for Democratic Empowerment, and the Association of Female Lawyers in Liberia.

The government National Human Rights Commission created in 1997 was virtually inactive. In May, the commission's chair Hall Badio stated that a lack of funds, staff, and logistical capacity had paralyzed the commission, making it difficult for it to investigate and monitor human rights cases in the country.

The Role of the International Community

Donors continued to insist that aid to Liberia would be dependent on improvements in microeconomic reporting, fiscal discipline, and respect for human rights. The international community was further concerned by evidence of Liberian support for Sierra Leonean rebels.

Much of the international attention to Liberia in the early part of the year focused on pressuring the Taylor government to withdraw its support to the Sierra Leonean rebels. In December 1998, the Economic Community of West African States (ECOWAS) committee of five met in Ivory Coast to discuss the situation in Sierra Leone and Liberia's involvement in the conflict. ECOMOG force

commander Timothy Shelpidi bluntly stated that Liberia was "aiding the rebels in Sierra Leone" using former members of Charles Taylor's disbanded faction. The U.S. also spoke out strongly, accusing Liberia of a "violent war of terrorism against the people of Sierra Leone." The U.N. Security Council was more muted in its condemnation of the participation of outside forces in the fighting in Sierra Leone, but stopped short of naming Liberia, and called upon all countries to abide by the U.N. arms embargo against the Sierra Leonean rebels. A month later, in January 1999, the U.N. Security Council more strongly condemned all those who supported the Sierra Leonean rebels, including through arms and mercenaries, particularly from Liberian territory. The U.S., U.K., and the German Presidency of the European Union also strongly protested Liberia's role in destabilizing Sierra Leone. In January 1999, U.S. State Department spokesperson James Ruben said that the U.S. had evidence of Liberia's support to the Sierra Leonean rebels. The Liberian link to the war in Sierra Leone was again at issue in April, when information emerged about a substantial arms shipment to Liberia in violation of the U.N. arms embargo. The U.S., together with Nigeria, the U.K., and Sierra Leone, brought this to the attention of the U.N. sanctions committee, which apparently questioned some of the countries involved. At this writing, it is not clear what further actions are contemplated. The Liberian government responded strongly against the international pressure and withholding of support. In January 1999, the Liberian government accused the U.K. and the U.S. of undertaking a "campaign intended to internationally isolate, economically strangle and diplomatically destroy Liberia." In August, President Taylor blamed the international donor community for "encouraging corruption" by denying the war-ravaged country international assistance. In August, the government called on the international community to lift the U.N. ban on arms sales to Liberia to allow it to purchase weapons following the rebel incursions over the Guinean border.

United Nations

The United Nations Department of Political Affairs retained a small U.N. Peace-Building Support Office (UNOL) following the withdrawal of the U.N. observer mission in July 1997, to serve as a focal point and coordinate post-conflict U.N. peace-building activities in Liberia as well as to provide advisory services to the government in defining post-conflict priorities, to raise international funds for Liberia, and to coordinate and liaise between the government and the international community. This unit remained in Monrovia during 1999 under special representative Felix Downs-Thomas, but maintained a low profile and was not a prominent player in raising human rights issues. UNOL's mandate did not explicitly include monitoring or investigation of human rights abuses, however, it assisted in police training and made recommendations on the draft legislation for the creation of the government human rights commission. In September, the government, ECOMOG, and UNOL were involved in resuming a weapons destruction program which had been suspended during the fighting in Lofa County. An estimated 18,000 weapons were destroyed.

Economic Community of West African States Cease-Fire Monitoring Group (ECOMOG)

ECOMOG continued to retain a scaled down presence in Liberia due both to the end of the war in Liberia as well as to its increased mobilization in Sierra Leone. However, relations between the Liberian government and ECOMOG remained strained both because of Taylor's refusal to allow ECOMOG to train and restructure the Liberian armed forces in accordance with the peace accords and allegations that Taylor was undermining peacekeeping efforts in Sierra Leone by supporting the rebel alliance that ECOMOG was seeking to defeat. Relations hit an all-time low in May when President Taylor accused ECOMOG of plotting to overthrow his government, a charge denied by ECOMOG commander Maj. Gen. Felix Mujakperuo. By mid-1999, ECOMOG had closed its Liberia operations, but retained ECOMOG troops in Liberia to monitor the Sierra Leonean situation.

United States

A rift in U.S.-Liberian relations followed the September 1998 outbreak of violence in Monrovia when Liberian security forces were responsible for wounding two Americans in a shooting incident outside the U.S. Embassy, and the war in Sierra Leone further strained relations. The U.S. and other international donors made clear that there would be no resumption of non-humanitarian assistance to Liberia until an investigation into the September events had been conducted. Tensions further increased at the end of 1998, when the U.S. publicly accused Liberia of actively supporting Sierra

Leonean rebels and threatened to take punitive measures, which were not publicly disclosed, against the Taylor government if such support did not cease. This represented the first time that the U.S. publicly linked Taylor's government to the Sierra Leonean rebels, and the message was repeated when the Liberian foreign minister visited Washington in February 1999. However, as Taylor publicly supported the peace process in Sierra Leone, the U.S. made new attempts to engage with him.

The Liberian government requested the U.N. to conduct an investigation into the September 1998 events, and its report was finally published in August. Although the report did not attribute blame for the incident, it has cleared the way for a multi-donor assessment mission to be discussed under the auspices of the World Bank.

In March, the U.S. State Department released its annual report on human rights for 1998 which accurately noted that Liberia's human rights record was poor due to disregard for civil liberties by the Taylor government. The Liberian government sharply rejected the report, saying that it was not credible and blaming local human rights groups for compiling negative reports on the country.

The U.S. sought to provide approximately (U.S.) \$27 million in assistance to Liberia during financial year 1999, the bulk being some \$10 million in development assistance aimed at capacity-building and democratization and \$13.8 million in food aid. However, Congress put a hold on \$1.2 million of aid designated for strengthening civil society and supporting the legislature, and for protecting and promoting human rights.

In July, the U.S. announced that it was ending the Temporary Protected Status (TPS) program for Liberians on September 29, 1999, which had allowed some 10,000 Liberians in the U.S. since 1991 to remain and work in the U.S. However, in September, President Clinton granted Deferred Enforced Departure (DED) for Liberians, which will provide temporary relief for one year.

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